

SENATE No. 1790

The Commonwealth of Massachusetts

PRESENTED BY:

Michael D. Brady

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to creditable service for elected officials.

PETITION OF:

NAME:

Michael D. Brady

DISTRICT/ADDRESS:

Second Plymouth and Norfolk

SENATE No. 1790

By Mr. Brady, a petition (accompanied by bill, Senate, No. 1790) of Michael D. Brady for legislation relative to creditable service for elected officials. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1616 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to creditable service for elected officials.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 4 (2) (c) of chapter 32 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding at the end thereof, the following:-

3 In the case of any employee of any governmental unit who is a member of the retirement
4 system pertaining thereto, the board may allow credit, upon whatever proportionate basis it shall
5 determine under appropriate rules and regulations which shall be subject to the approval of the
6 actuary, for any previous period of part-time, elected, provisional, temporary, temporary
7 provisional, seasonal or intermittent employment or service rendered by him after such a
8 retirement system becomes operative and while he was not eligible for membership or in the case
9 of an elected official, did not exercise his right to become a retirement system member,
10 excluding any prescribed waiting period under the provisions of the law or under the board's

11 rules and regulations in effect during such previous period before eligibility for membership,
12 established either by law or board ruling in effect prior to January first, nineteen hundred and
13 forty-six, for which such service credit was given upon attaining membership.